NEW YORK STATE OF OPPORTUNITY.

**Homes and Community Renewal**

**Office of Rent Administration**

# Guide to Understanding Registration Apartment Information (RAI)

The enclosed RAI, commonly referred to as an apartment rent history, will show the rent and registration status of the apartment on April 1st as reported annually by the building owner. The following is a summary that will help you understand the rent history. Please visit us at HCR.NY.GOV/tenant-resources for additional information.

**Leases**

When a tenant signs a rent stabilized lease, they can choose between a one or two-year option. The allowable rent increase, known as a guideline adjustment, is set by the local rent guidelines board. It is applied to the legal rent, and the preferential rent, if the latter is being charged. Please refer to the Recent Lease Guideline Rates chart on page 2. A DHCR Rent Stabilization Lease Rider/Addenda is required to be attached to the lease and contains important lease information, including a summary of tenants' rights. For additional information on rent stabilization and lease requirements, please see DHCR Fact Sheets #1, #4, #5 and #40.

**Individual Apartment Improvements (IAI)**

When an owner installs a new appliance or makes an improvement to an apartment the owner may be entitled to an IAI rent increase. IAI rent increases are reported in the rent history. To obtain the IAI rent increase, owners are required to file a notification with DHCR, and tenant written consent is required if the apartment is occupied. For additional details on IAI requirements, please see DHCR Operational Bulletin 2024-2.

**Major Capital Improvements (MCI)**

An owner may be permitted to collect rent increases to recover the costs of building-wide major capital improvements, such as the replacement of a boiler or new plumbing. The owner is required to file an application with DHCR and obtain an order granting or denying the rent increase. For additional details on MCI requirements, please see DHCR Fact Sheet #24.

**Deregulation**

Prior to June 14, 2019, a vacant apartment with a legal rent that reached the deregulation rent threshold lawfully, could become deregulated and the incoming tenant could be charged a market rent. Occupied apartments, with tenants whose rent and income reached the deregulation thresholds, could also be deregulated, but only by order of the DHCR. This would be registered in the rent history as "Permanently Exempt" (PE). For additional details on deregulation, including tax benefit lease notification requirements, please see DHCR Fact Sheets #36 and #41.

## RECENT LEASE GUIDELINE RATES

- Prior to the effective date of the Housing Stability and Tenant Protection Act (HSTPA) of 2019, June 14, 2019, these guidelines applied only to lease renewals.
- Effective November 8, 2023, the rent regulation amendments clarify that guideline adjustments apply to vacancy and renewal leases. For guidelines prior to this date, the footnote "1" is used as a notation (previously noted with a "G"). In light of this amendment, the use of this footnote in subsequent guideline years is no longer necessary.
- On June 18, 2025, the New York State (NYS) Court of Appeals issued its decision in the Emergency Tenant Protection Act (ETPA) case, Hudson Valley Property Owners Association Inc. et al. v. City of Kingston et al. The decision upheld Kingston's adoption of the ETPA and Kingston Rent Guidelines Board's fair market rent and guideline adjustment. See footnote "7."

| EFFECTIVE DATE OF RENEWAL LEASE | NYC | | Nassau | | Rockland | | Westchester | | City of Kingston | |
|---|---|---|---|---|---|---|---|---|---|---|
| | 1 year | 2 year | 1 year | 2 year | 1 year | 2 year | 1 year | 2 year | 1 year | 2 year |
| 10/1/20-9/30/21 | 0.00%[1] | 0.00%[1,2]<br>1.00%[1,2] | 0.00%[1] | 0.00%[1] | 0.00%[1] | 0.00%[1] | 0.00%[1] | 0.00%[1] | — | — |
| 10/1/21-9/30/22 | 1.50%[1,3] | 2.50%[1] | 1.00%[1] | 2.00%[1] | 0.50%[1] | 0.75%[1] | 0.50%[1] | 1.00%[1] | — | — |
| 10/1/22-9/30/23 | 3.25%[1] | 5.00%[1] | 2.00%[1] | 3.50%[1] | 0.50%[1] | 0.75%[1] | 2.00%[1]<br>1.00%[1,4] | 3.00%[1]<br>2.00%[1,4] | -15.00%[7] | -15.00%[7] |
| 10/1/23-9/30/24 | 3.00%[1] | 2.75%[1,5]<br>3.20%[1,5] | 1.00%[1]<br>0.00%[1,6] | 2.00%[1]<br>0.00%[1,6] | 0.00%[1] | 0.50%[1] | 1.00%[1] | 2.00%[1] | 0.00%[1] | 0.00%[1] |
| 10/1/24-9/30/25 | 2.75% | 5.25% | 1.50% | 2.50% | 2.00% | 3.00% | 2.50% | 3.50% | 0.00% | 0.00% |
| 10/1/25-9/30/26 | 3.00% | 4.50% | 2.00% | 3.00% | 5.00% | 6.00% | 2.00% | 3.00% | 0.00% | 0.00% |
| 10/1/26-9/30/27 | 0.00% | 0.00% | 1.50% | 2.50% | 5.00% | 6.00% | 3.50% | 4.50% | —[8] | —[8] |

[1] The guideline adjustment is authorized for vacancy and renewal leases.

[2] 0% for the first year of the lease and 1% for the second year of the lease.

[3] 0% for the first six (6) months of the lease and 1.5% for the final six (6) months of the lease.

[4] These guideline adjustments apply only to the Village of Croton-on-Hudson, which expanded its ETPA coverage on March 27, 2023 to buildings built before 1974 with six or more units. They apply to leases commencing between March 27, 2023 and September 30, 2023.

[5] For a two-year lease commencing on or after October 1, 2023 and on or before September 30, 2024, for the first year of the lease, 2.75%; and for the second year of the lease, 3.20% of the amount lawfully charged in the first year, excluding any increases other than the first-year guideline adjustment.

[6] These guideline adjustments apply only to the Village of Hempstead within Nassau County.

[7] The KRGB has set the allowable rent adjustment at -15%. This applies to apartments that became subject to the ETPA as of July 29, 2022, and where leases were required by the ETPA to commence between August 1, 2022 and September 30, 2023.

[8] At this time, the KRGB has not determined the guideline adjustment for leases commencing 10/1/2026 through 9/30/2027.